

does not challenge any specific provisions in the arbitration agreement, Plaintiff has not shown any element of substantive unconscionability.

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CASE #	CASE NAME	HEARING NAME
CVRI2602516	GRIES vs EISENHOWER MEDICAL CENTER	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: Plaintiff's Motion for Trial Preference is granted. Trial is set for 11/6/26; Trial Readiness Conference is set for 10/30/26.

A party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) "Mere inconvenience to the court or other litigants is irrelevant. [citation] Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (*Swaithes v. Superior Court* (1985) 212 Cal. App. 3d 1082, 1085.) The trial court does not balance the interests of the parties in applying section 36(a). (*Ibid.*)

Plaintiff was born on August 2, 1942 and is currently 84-years-old, which satisfies the first factor above. (Willoughby Dec., ¶ 1.) It is undisputed that, as the Plaintiff, Gary Gries has a substantial interest in the action. Accordingly, the only remaining issue is whether Plaintiff's health is such that a preference is necessary to prevent prejudicing his interest in the litigation.

Pursuant to CCP § 36.5, a motion for trial preference under Section 36(a) may be supported by nothing more than an attorney's declaration based upon information and belief as to the medical diagnosis and prognosis. (*Fox, supra*, 21 Cal. App. 5th at 534.) The moving party is not required to provide a doctor's opinion. (*Ibid.*) Moreover, the party is not required to establish that death or incapacity is imminent or likely to deprive her of the ability to participate in trial. (*Ibid.*)

Here, counsel's declaration appears to be based on the same medical conditions at issue in the Complaint. On February 28, 2026, Mr. Gries was diagnosed with multiple pulmonary nodules with a dominate spiculated mass in the right middle lobe, which was apparently highly concerning for primary lung cancer. (Willoughby Dec., ¶ 2.) Subsequent imaging revealed nine enhancing intercranial lesions consistent with brain metastasis, multiple liver lesions consistent with metastasis, C-4 spine metastasis and hypopituitarism caused by brain metastasis. (Id at ¶ 3.) Counsel states that this type of

leptomeningeal disease is associated with a significantly decreased life expectancy of 4-12 months. (Id at ¶ 4.)

Defendants do not dispute the medical information provided, but argue that it is insufficient since it is based on tests performed four months ago. Moreover, Defendants contend that Plaintiffs counsel's declaration suggests a life expectancy from four to upwards of 12 months, which implies the plaintiff does not have a definitive prognosis timeline and negates the need for the four-month rush the instant motion is attempting to impose. However, a more precise prediction is not necessary. As the *Fox* Court noted:

For those in Ms. Fox's unfortunate situation, the end may come quickly with little warning; years may pass with gradual, relentless decline before the battle is lost; or, happily, there may be sustained remission after episodic periods of improvement and relapse. Anyone who has ever heard a physician say in these circumstances, "we just can't predict with any certainty," will appreciate that indeterminacy is not only inherent in the situation, but is part of the challenge of dealing with it. We therefore agree that, on this record, the absence of more specifics about Ms. Fox's prognosis was insufficient reason to deny the Foxes' request for calendar preference. Metalclad's position to the contrary, in our view, grafts the more stringent standard of section 36, subdivision (d) onto subdivision (a) in derogation of the text and structure of the statute.

(*Fox, supra*, 21 Cal. App. 5th at 535-536.) Based on the evidence provided, it appears that Plaintiff's current life expectancy is between four to 12 months due to cancer. Plaintiff has satisfied his burden of showing that trial preference is necessary to prevent prejudice to his interest in the litigation.